

		Accordingly, the applications are DENIED. Plaintiff to give notice.
111	Solouki v. Saint-Gobain Performance Plastics Corporation, et al , 2025- 01507443	DEMURRER TO 3RD CAUSE OF ACTION - OVERRULED Defendant Mac Patel demurs to plaintiff Tony Solouki’s third cause of action for harassment on the basis of age. Defendant argues that the cause of action fails to state sufficient facts because it is based on a single incident that involved a benign comment between two coworkers. Government Code section 12940, subdivision (j), defines “unlawful employment practice” to include harassment in the workplace based on, among other statuses, age. “Under the statute ‘harassment’ in the workplace can take the form of ‘discriminatory intimidation, ridicule and insult’ that is ‘ “sufficiently severe or pervasive to alter the conditions of the victim’s employment and create an abusive working environment.” ’ [Citations.]” (Rehmani v. Superior Court (2012) 204 Cal.App.4th 945, 951.) “Whether the conduct of the alleged harassers was sufficiently severe or pervasive to create a hostile or abusive working environment depends on the totality of the circumstances. ‘ “These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance.” ’ [Citations.] ‘ “Common sense, and an appropriate sensibility to social context, will enable courts and juries to distinguish between simple teasing or roughhousing . . . and conduct [that] a reasonable person in the plaintiff’s position would find severely hostile or abusive.” ’ [Citations.]” (Rehmani, supra, 204 Cal.App.4th at pp. 951–952.) In an action for harassment, “ ‘[i]t suffices to prove that a reasonable person subjected to the discriminatory conduct would find, as the plaintiff did, that the

		harassment so altered working conditions as to make it more difficult to do the job.’ ” (Gov. Code, § 12923(a).) “A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff’s work performance or created an intimidating, hostile, or offensive working environment.” (Id., § 12923(b).) The third cause of action alleges that demurring defendant referred to plaintiff as an “old forgetful senior citizen” in front of several employees during a coworker’s birthday celebration. (Compl. ¶ 43.) Plaintiff alleges that this is one example of a harassing and hostile work environment based on plaintiff’s age and/or other protected statuses. (Ibid.) Demurring defendant concedes that a harassment cause of action may be based on a single incident, such as the claim against him here. The court cannot decide as a matter of law that Defendant’s comment was not an unlawful employment practice. In light of the above, the demurrer is OVERRULED. Defendant to file an answer to the complaint within 20 days. Defendant to give notice.
112	Time Investments LLC v Orleman, 2024-01385610	MOTION TO STRIKE ANSWER - GRANTED OSC RE MONETARY SANCTIONS - DISCHARGED Plaintiff Time Investments, LLC (“Plaintiff”) moves to strike Defendant Marc Orleman’s (“Defendant”) Answer to Plaintiff’s First Amended Complaint and for an order granting monetary sanctions. Defendant failed to respond to Plaintiff’s initial written discovery requests, resulting in a Court order compelling responses, deeming the truth of matters in requests for admission admitted, and imposing monetary sanctions in the amount of \$3,750. (ROA 74.) The underlying motions to compel were unopposed, and Defendant did